

[Return to Order of Business](#)

TAB 20



Board of Education Report

File #: Rep-158-25/26, Version: 1
In Control: Facilities

Agenda Date: 11/18/2025

Certification of Unhoused Pupils for Charter School Facilities Program Applications Facilities Services Division

Brief Description:

(Certification of Unhoused Pupils for Charter School Facilities Program Application) Recommends adoption of a resolution to fulfill the requirements of the California Code of Regulations Title 2 Section 1859.162.1, in support of Port of Los Angeles High School's (POLAHS) independent application for funding under the Charter Schools Facilities Program (CSFP).

Action Proposed:

Adopt attached resolution (Exhibit A) certifying that zero state-recognized unhoused pupils in grades K-12 and in the Special Day Class (SDC) Non-Severe and Severe programs will be served by the charter school new-construction project for which POLAHS will independently submit a CSFP funding application by October 30, 2025 (Resolution).

Background:

In 2002, Assembly Bill (AB) 14 created the CSFP. Through the passage of Propositions 47 (2002), 55 (2004), 1D (2006), 51 (2016), and 2 (2024), \$2 billion in state bond authority has been made available for the construction of new charter school facilities or the rehabilitation of school district facilities that are at least 15 years old for charter school use. The Office of Public School Construction (OPSC) is administering a single filing round, which opened on July 3, 2025, to allocate the entire \$600 million CSFP bond authority from Proposition 2. Applications for this filing round must be submitted to the OPSC and the Charter School Finance Authority (CSFA) by October 30, 2025.

Upon receipt of a charter school's notice of intent to apply for CSFP funds, LAUSD, using the method adopted by the Board of Education in May 2007 (Exhibit B), must determine its number of "unhoused pupils," defined as the number of pupils by which the District's projected enrollment exceeds its existing classroom capacity. If there are unhoused pupils, the District must use the method to determine how many of those unhoused pupils will be served by the proposed charter school project. Pursuant to 2 CCR Section 1859.162.1, this result must be certified by the District's governing board in a resolution presented at a regularly scheduled, publicly held board meeting and submitted to the Office of Public School Construction within 90 days of the District's receipt of notification that the charter school intends to apply for CSFP funding. The deadline for charter schools to notify the District of plans to submit CSFP applications during the current funding cycle was September 30, 2025.

At the time of the LAUSD Board's August 26, 2025 meeting, LAUSD staff had received two letters of intent to apply for CSFP funding, all of which were for proposed projects serving K-12 and/or SDC non-severe pupils and located on non-LAUSD sites. At that meeting, the Board certified that zero *unhoused* K-12 or SDC non-severe pupils will be served by charter schools submitting CSFP applications during the current funding cycle (Exhibit C). Subsequently, however, POLAHS, which, in addition to grade 9-12 and SDC non-severe pupils,

serves SDC severe pupils, notified the District of its plans to submit a CSFP application. Application of the District's May 2007 method shows that zero *unhoused* SDC severe pupils will be served by POLAHS's project, and an additional resolution is now required to certify this fact. The deadline for submitting this resolution to OPSC is December 3, 2025.

Note that, under CSFP regulations, all charter schools intending to submit CSFP applications during the current funding cycle will remain eligible for funding even if the school district certifies that zero unhoused pupils will be served.

Expected Outcomes:

Staff anticipates that the Board will adopt the Resolution, thus fulfilling the requirements of California Code of Regulations Title 2, Section 1859.162.1.

Board Options and Consequences:

Board approval of the proposed action will ensure compliance with 2 CCR section 1859.162.1 requirements and will allow POLAHS to proceed with its CSFP application. This will not affect LAUSD's new-construction eligibility since no unhoused pupils will be served by the POLAHS project. However, if the proposed action is deferred or not approved, LAUSD will be in noncompliance with 2 CCR 1859.162.1, and POLAHS will be unable to proceed with its CSFP funding application, which could result in a legal dispute between LAUSD and the school.

Policy Implications:

This action will not change current LAUSD policy. A Board resolution certifying the number of unhoused pupils is essential in meeting CSFP requirements for charter schools applying on their own behalf.

Budget Impact:

District funding is not required for the adoption of the Resolution.

Student Impact:

The proposed action will enable POLAHS to file a CSFP application for state funding, thus helping it provide safe and effective learning environments for its students.

Equity Impact:

Not applicable.

Issues and Analysis:

Once a charter school applicant submits its CSFP application, it will proceed through the state's regulatory process for scoring, prioritization, and potential award. If selected for funding, the project will continue through the state's funding process, with all required reporting administered by the state and performed by the charter school's staff. This portion of the process does not involve or impact District staff, students, or budget.

Attachments:

Exhibit A: Resolution of the LAUSD Board of Education Certifying that No Unhoused Pupils within LAUSD will be served by the Charter School Facilities New-Construction Project at Port of Los Angeles High School

Exhibit B: Board of Education Report 365-06/07, adopted 5/24/07: Certification of Unhoused Pupils for Proposition 1D Charter School Facilities Program Applicants

Exhibit C: Resolution of the Board of Education of the Los Angeles Unified School District (LAUSD) Establishing the Number of Unhoused Pupils within LAUSD as of October 30, 2025, Based on the Calculation of Unhoused Pupils That Is Prescribed by the State in Section 1859.50 of the School Facility Program (SFP) Regulations for the Charter School Facilities Program (CSFP)

Submitted:
10/23/25

File #: Rep-158-25/26, **Version:** 1
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Agenda Date: 11/18/2025

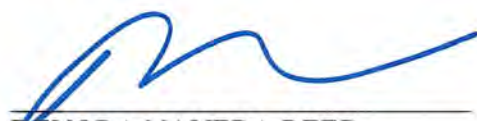
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:

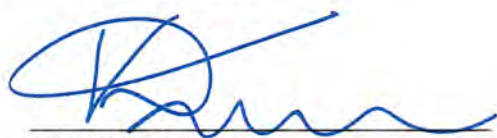

DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


KURT E. JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

**RESOLUTION OF THE LAUSD BOARD OF EDUCATION CERTIFYING THAT
NO UNHOUSED PUPILS WITHIN LAUSD WILL BE SERVED
BY THE CHARTER SCHOOL FACILITIES NEW-CONSTRUCTION PROJECT
AT PORT OF LOS ANGELES HIGH SCHOOL**

WHEREAS the State announced that an application cycle for the Charter School Facilities Program (CSFP) opened on July 3, 2025 and will close on October 30, 2025; and

WHEREAS the CSFP requires that the number of pupils that are reduced from a district's School Facility Program (SFP) new-construction grant eligibility because of a charter school's filing of an application on its own behalf be determined by that school district; and

WHEREAS Port of Los Angeles (POLA) High School intends to independently apply, during the current funding cycle, for CSFP funding for a project that will serve pupils in grades 9-12 and in Special Day Class Non-Severe and Severe programs; and

WHEREAS application of the method adopted by the Board of Education in May 2007 shows that zero unhoused pupils will be served POLA High School's project;

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION OF LAUSD, COUNTY OF LOS ANGELES, CALIFORNIA, AS FOLLOWS:

The POLA High School project will serve zero LAUSD unhoused pupils and therefore will not reduce the district's SFP new-construction grant eligibility.

Adopted and signed this 18th day of November, 2025, by the Board of LAUSD.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

Passed, Approved and Adopted this 18th Day of November, 2025:

<u>Scott Schmerelson</u>	<u>Board President</u>	<u>Dr. Rocio Rivas</u>	<u>Board Vice President</u>
(Name and Title)		(Name and Title)	
<u>Sherlett Hendy Newbill</u>	<u>Board Member</u>	<u>Nick Melvoin</u>	<u>Board Member</u>
(Name and Title)		(Name and Title)	
<u>Karla Griego</u>	<u>Board Member</u>	<u>Kelly Gonez</u>	<u>Board Member</u>
(Name and Title)		(Name and Title)	
<u>Tanya Ortiz Franklin</u>	<u>Board Member</u>		
(Name and Title)			

CERTIFICATION

I do hereby certify that the foregoing resolution was duly approved and adopted by the Board of the LAUSD at a meeting held on the 18th day of November, 2025 by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date

LOS ANGELES UNIFIED SCHOOL DISTRICT

BOARD OF EDUCATION REPORT NO. 365-06/07

Facilities Services Division

For presentation to the Board of Education on May 8, 2007

Adopted 5/24/07

**SUBJECT: CERTIFICATION OF UNHOUSED PUPILS FOR PROPOSITION 1D
CHARTER SCHOOL FACILITIES PROGRAM APPLICANTS**

PROPOSAL

Staff proposes that the Board of Education adopt an unhoused pupil calculation methodology for the purpose of the Charter School Facility Program (CSFP) related to Proposition 1D. Staff further proposes that the Board adopt a resolution stating that there will be no unhoused pupils within the Los Angeles Unified School District as of June 5, 2007.

BACKGROUND

This Board report is intended to meet the requirements of Proposition 1D as related to CSFP applications filed by independent Charter operators. Voters approved of Proposition 1D in November 2006. Proposition 1D included an additional \$500 million for the CSFP. AB 127 was signed by the Governor in May 2006. It removed the CSFP requirement that a school district demonstrate that it has new construction eligibility before the OPSC will consider a funding request from a charter operator. The CSFP now allows the school district to determine the number of pupils that are reduced from its new construction eligibility when an independent charter applies for funding.

Proposition 1D requires school districts to: 1) establish a methodology to calculate the number of unhoused pupils served by a Proposition 1D funded project, and, 2) certify the specific number of unhoused pupils --based on that methodology--served by a project. The approval of this proposed Board action would accomplish both of these requirements and thereby ensure that the District's new construction eligibility will not be reduced by independent charters applying for CSFP funds.

Proposition 1D requires charter applicants to notify the school district where the charter is to be located of their intent to apply for Proposition 1D CSFP funds at least 30 days prior to filing an application. School districts are then required to certify the number of unhoused pupils that will be served by the project. This certification is required to take place at a regularly scheduled board meeting. The certification, in the form a board resolution, must be signed by a school board member and submitted to the OPSC within 90 days of the charter school's notification.

Methodology for Calculating Unhoused Pupils

Staff recommends that the following methodology be used by the LAUSD to determine the number of unhoused pupils that will be included in each CSFP new construction funding application that is submitted by a charter schools within LAUSD:

1. Determine the number of District unhoused pupils in each grade level, calculated as prescribed by the State in Section 1859.50 of the School Facility Program (SFP) regulations, that will remain unhoused after all projects in the Strategic Execution Plan (SEP) are completed.
2. If the number for any grade level is greater than zero, determine the proximity of remaining unhoused pupils to a proposed charter school that will serve those grade levels.
3. At the LAUSD Board's discretion, assign any "remaining" unhoused pupils to the proposed charter school projects that will serve the appropriate grade levels provided the proposed charter school is within a 1-mile radius of any "remaining" elementary unhoused pupils and/or within a 3-mile radius of any "remaining" secondary unhoused pupils. The number of "remaining" unhoused pupils assigned to a charter school should not exceed the number of pupil grants for which the charter school has applied.

Based on the above methodology, the number of pupils that will remain unhoused after the completion of all projects in the New Construction SEP is zero. Staff expects this number to remain zero through October 31, 2007, which is the last day the State allows the District to use 2006-2007 enrollment data to calculate eligibility for State for matching funds. Therefore, the required Board certification should reflect that each CSFP application filed through October 31, 2007 will include zero LAUSD unhoused pupils.

BUDGET IMPLICATIONS

The state Charter School Facilities Program is currently funded by state bond funds resulting from the passage of Proposition 1D in November 2006. Previous CSFP awards from Proposition 55 counted against District eligibility and therefore had an impact on LAUSD funding. As a result of recent changes to the CSFP regulations and this Board report, CSFP awards from Proposition 1D will not impact LAUSD access to State matching funds.

POLICY IMPLICATIONS

These actions establish a methodology to calculate unhoused pupils for purposes of the CSFP program.

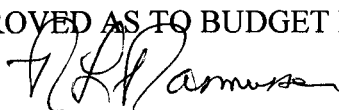
DESEGREGATION IMPACT STATEMENT

These actions have been reviewed and do not require a desegregation impact statement.

RECOMMENDATION

IT IS RECOMMENDED, that the Board of Education adopt an unhoused pupil calculation methodology for the purpose of the Charter School Facility Program (CSFP) related to Proposition 1D. It is further recommended that the Board adopt a resolution stating that there will be no unhoused pupils within the Los Angeles Unified School District as of June 5, 2007.

APPROVED AS TO BUDGET IMPLICATIONS:



ROGER RASMUSSEN
Budget Director

Respectfully submitted,

DAVID L. BREWER III
Superintendent of Schools

PREPARED BY:

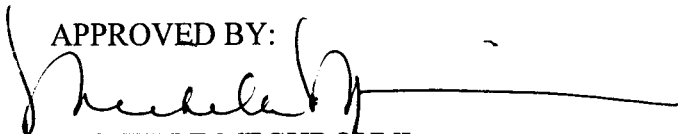


KENNETH HARGREAVES
Director of Operations, New Construction



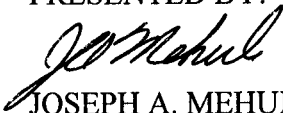
JIM COWELL
Deputy Chief Facilities Executive, New Construction

APPROVED BY:



MICHELLE MEGHROUNI
Associate General Counsel II

PRESENTED BY:



JOSEPH A. MEHULA
Chief Facilities Executive

RESOLUTION OF THE BOARD OF EDUCATION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT ESTABLISHING THE NUMBER OF UNHOUSED PUPILS WITH THE LOS ANGELES UNIFIED SCHOOL DISTRICT AS OF JUNE 5, 2007, BASED ON THE CALCULATION OF UNHOUSED PUPILS THAT IS PRESCRIBED BY THE STATE IN SECTION 1859.50 OF THE SCHOOL FACILITY PROGRAM (SFP) REGULATIONS FOR THE CHARTER SCHOOL FACILITIES PROGRAM (CSFP).

WHEREAS, AB 127 was approved by Governor Schwarzenegger in May 2006. Among other things, this law changed some of the provisions of the CSFP. The changes were incorporated into law when voters approved an additional \$500 million for the CSFP as part of Proposition 1D in the November 2006 election; and

WHEREAS, The CSFP now requires that the number of pupils that are reduced from a district's new construction eligibility as a result of a charter school filing an application on its own behalf be determined by that school district; and

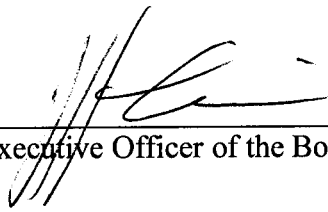
WHEREAS, For a charter school applying on its own behalf for new construction funds, the new regulations request the school district to provide a certification to the number of the district's unhoused pupils, pursuant to Section 1859.50, that the project will serve; and

WHEREAS, As of the date of this board report, the number of unhoused pupils that will remain unhoused after the completion of all projects identified in the SEP is zero. Staff expects this number to remain the same through at least October 31, 2007, but most likely beyond that date;

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT, COUNTY OF LOS ANGELES, CALIFORNIA, AS FOLLOWS:

All projects for which applications will be submitted by charter schools on their own behalf to the Office of Public School Construction for the 2007 application cycle of the Charter School Facilities Program will serve zero unhoused District pupils.

Adopted and signed this 24th day of May, 2007, by the Board of Education of the Los Angeles Unified School District.

By: 
Executive Officer of the Board of Education

**LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A**

**RESOLUTION OF THE BOARD OF EDUCATION (BOARD) OF THE LOS ANGELES
UNIFIED SCHOOL DISTRICT (LAUSD), AS REQUIRED BY STATE FACILITY
PROGRAM REGULATION SECTION 1859.162.1, ESTABLISHING THE NUMBER OF
UNHOUSED PUPILS AS OF OCTOBER 30, 2025, BASED ON THE CALCULATION
METHOD IN SECTION 1859.50 FOR THE CHARTER SCHOOL FACILITIES
PROGRAM**

WHEREAS, the State announced that an application cycle for the CSFP will open on July 3, 2025, and will close on October 30, 2025; and

WHEREAS, the CSFP requires that the number of pupils that are reduced from a district's new construction eligibility as a result of a charter school filing an application on its own behalf be determined by that school district; and

WHEREAS, as of the date of this Resolution and continuing through October 30, 2025, the LAUSD has no unhoused pupils in grades K–6, 7–8, 9–12, or in Special Day Class (SDC) Non-Severe programs,

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION OF THE LOS ANGELES UNIFIED DISTRICT, COUNTY OF LOS ANGELES, CALIFORNIA, AS FOLLOWS:

All projects with applications submitted during the current CSFP cycle by charter schools applying on their own behalf—including those from Green Dot Public Schools for Ánimo Jackie Robinson Charter High School and Citizens of the World Charter Schools Los Angeles for Citizens of the World Charter School Hollywood—as well as any additional applications for grades K–12 or Special Day Class (SDC) Non-Severe, will serve zero unhoused pupils.

Adopted and signed this 26th day of August 2025, by the Board of LAUSD.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

Passed, Approved and Adopted this 26th Day of August 2025:

Scott Schmerelson Board President
(Name and Title)

Dr. Rocio Rivas Board Vice President
(Name and Title)

Sherlett Hendy Newbill Board Member
(Name and Title)

Nick Melvoin Board Member
(Name and Title)

Karla Griego Board Member
(Name and Title)

Kelly Gonez Board Member
(Name and Title)

Tanya Ortiz Franklin Board Member
(Name and Title)

CERTIFICATION

I do hereby certify that the foregoing resolution was duly approved and adopted by the Board of the LAUSD at a meeting held on the 26th day of August 2025 by the following vote:

AYES: 7

NOES: 0

ABSENT: 0

ABSTAIN: 0

M. A. McLean

Michael McLean
Executive Officer of the Board of Education

8/26/25

Date